

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.149	0.142	0.007	0.243	0.095
Trial Fee-Shifting	0.135	0.136	0.009	0.231	0.089
Complete Fee-Shifting	0.137	0.137	0.008	0.235	0.088